

# **ACME CORPORATION**

## Vendor Non-Disclosure Agreement

This Non-Disclosure Agreement ("Agreement") is entered into as of the date of last signature below, by and between Acme Corporation ("Company") and the vendor identified in the signature block below ("Vendor"), collectively the "Parties."

### 1. CONFIDENTIAL INFORMATION

For purposes of this Agreement, "Confidential Information" means any non-public technical, business, or financial information disclosed by either Party, whether disclosed orally, in writing, or by inspection of tangible items, that is designated as confidential at the time of disclosure or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure.

### 2. OBLIGATIONS OF RECEIVING PARTY

The receiving Party agrees to hold the disclosing Party's Confidential Information in strict confidence and not to disclose such Confidential Information to any third party without prior written consent, except to employees and contractors with a legitimate need to know, who are themselves bound by confidentiality obligations at least as protective as those in this Agreement.

### 3. TERM

This Agreement shall remain in effect for a period of three (3) years from the Effective Date, provided that obligations with respect to any Confidential Information disclosed during the term shall survive termination of this Agreement for an additional period of two (2) years thereafter.

### 4. EXCLUSIONS

This Agreement imposes no obligation with respect to information that:

- (a) was already known to the receiving Party prior to disclosure;
- (b) becomes publicly available through no fault of the receiving Party;
- (c) is independently developed without reference to the Confidential Information; or (d) is rightfully received from a third party without restriction.